

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BABIE SIMPSON,

Plaintiff,

-against-

DETECTIVE JOSE M. REYNA, Shield No. 12126,
DETECTIVE PETAR SIMONOVIC, Shield No. 4299,
UNDERCOVER POLICE OFFICER 361, LIEUTENANT
DARYL L. MELHADO, and POLICE OFFICERS JOHN
DOES #1-4 (names and numbers of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 29, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE JOSE M. REYNA, Shield No. 12126, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038
DETECTIVE PETAR SIMONOVIC, Shield No. 4299, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038
UNDERCOVER POLICE OFFICER 361, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038
LIEUTENANT DARYL L. MELHADO, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
BABIE SIMPSON,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

DETECTIVE JOSE M. REYNA, Shield No. 12126,
DETECTIVE PETAR SIMONOVIC, Shield No. 4299,
UNDERCOVER POLICE OFFICER 361, LIEUTENANT
DARYL L. MELHADO, and POLICE OFFICERS JOHN
DOES #1-4 (names and numbers of whom are unknown at
present),**JURY TRIAL DEMANDED**Defendants.
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Plaintiff BABIE SIMPSON, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 28, 2016 at approximately 6:00 pm plaintiff was lawfully present in front of a grocery store located on the corner of Prospect Avenue and Home Street, Bronx, New York when defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/imprisoned plaintiff, without probable cause or legal justification. Defendants transported plaintiff against his will to the 42nd Precinct whereat plaintiff was unlawfully fingerprinted, photographed and detained in a filthy holding cell for many hours. At approximately 12:00 am on October 29, 2016 plaintiff was transported to Bronx Central Booking whereat he was detained in a vermin and insect infested holding cell and was bitten numerous times by bed bugs at Central Booking. Defendants provided the Bronx District Attorney's Office with false, misleading and incomplete evidence regarding defendants purported basis for arresting plaintiff and charging him with crimes. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to fair trial when they maliciously initiated a criminal prosecution against him, without probable cause. On October 29, 2016 at approximately 8:00 pm plaintiff was arraigned in Bronx Criminal Court and charged with crimes he did not commit, based upon the false allegations made against him by defendants. Plaintiff was released from custody on his own recognizance at arraignment. All charges brought against plaintiff were

dismissed and sealed in their entirety in October 27, 2017. Plaintiff was deprived of her constitutional and common law rights when the individually named defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BABIE SIMPSON is a resident of the state of New York.

3. DETECTIVE JOSE M. REYNA, Shield No. 12126, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JOSE M. REYNA, Shield No. 12126, was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

5. DETECTIVE JOSE M. REYNA, Shield No. 12126, is being sued in his individual and official capacity.

6. DETECTIVE PETAR SIMONOVIC, Shield No. 4299, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE PETAR SIMONOVIC, Shield No. 4299, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

8. DETECTIVE PETAR SIMONOVIC, Shield No. 4299, is being sued in his individual and official capacity.

9. UNDERCOVER POLICE OFFICER 361, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. UNDERCOVER POLICE OFFICER 361, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

11. UNDERCOVER POLICE OFFICER 361, is being sued in his individual and official capacity.

12. LIEUTENANT DARYL L. MELHADO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. LIEUTENANT DARYL L. MELHADO, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

14. LIEUTENANT DARYL L. MELHADO, is being sued in his individual and official capacity

15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On October 28, 2016 at approximately 6:00 pm plaintiff was lawfully present in front of a grocery store located on the corner of Prospect Avenue and Homes Street, Bronx, New York., when defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/imprisoned plaintiff.

22. Plaintiff was approached by defendants, unlawfully handcuffed and falsely arrested/ imprisoned without probable cause and without any legal justification whatsoever.

23. At no time relevant herein did plaintiff commit a crime, violate the law in any way, or behave in a suspicious manner that would give a reasonable police officer reasonable suspicion or probable cause to believe plaintiff committed a crime.

24. Defendants did not possess any objective facts that suggested to them that plaintiff committed a crime or violated the law in any manner.

25. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

26. At no time relevant herein did the defendants recover any illegal drugs, weapons, or contraband from plaintiff's person or from his possession, custody or control.

27. Plaintiff possessed \$24 when defendants arrested him and at no time relevant herein did defendants recover any "marked money" from plaintiff's person or from his possession, custody or control.

28. Defendants unlawfully handcuffed plaintiff and transported him against his will to the 42nd Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

29. At approximately 12:00 am on October 29, 2016 plaintiff was transported from the 42nd Precinct to Bronx Central Booking whereat the unlawful detention continued.

30. At Bronx Central Booking plaintiff was unlawfully detained in a holding cell that was infested with vermin and insects, including bed bugs.

31. The prisoner holding cells in Bronx Central Booking were infested with bed bugs, vermin and insects due to the City's failure to reasonably exterminate the holding cells located in Central Booking to rid the holding cells of insects and vermin.

32. Plaintiff was detained at Bronx Central Booking in a vermin and insect infested holding cell and was bitten numerous times by bed bugs at Central Booking causing plaintiff to suffer from painful swelling for a couple of weeks after he was released from custody at Bronx Central Booking.

33. The defendants provided the Bronx District Attorney's Office with fabricated, false, misleading and incomplete evidence and allegations that they purportedly used to establish probable cause to arrest and prosecute plaintiff.

34. Plaintiff was arraigned in Bronx Criminal Court on October 29, 2016 at approximately 8:00 pm and charged with crimes he did not commit based upon the fabricated allegations made against him by the defendants.

35. Specifically, plaintiff was falsely charged with Criminal Sale of Marijuana (PL 221.40) and Unlawful Possession of Marijuana (PL 221.05) based upon allegations that were fabricated by the defendants.

36. The defendants denied plaintiff the right to due process/ right to a fair trial and maliciously initiated a criminal prosecution against plaintiff without probable cause

37. Plaintiff was released from custody on his own recognizance at arraignment.

38. All charges brought against plaintiff terminated in plaintiff's favor and were dismissed and sealed in their entirety in October 27, 2017.

39. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess an objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

40. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

41. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

42. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and the denial of the right to due process/ right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

43. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

50. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. The conduct of defendants in stopping, frisking and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

62. Plaintiff repeats and realleges paragraphs 1 through 61 as if fully set forth herein.

63. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

64. Defendants commenced and continued a criminal proceeding against plaintiff.

65. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

66. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

67. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 68 with the same force and effect as if fully set forth herein.

70. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx District Attorney's Office.

71. Defendants filled out false, incomplete, and misleading police reports and forwarded them to prosecutors in the Bronx District Attorney's Office.

72. Defendants signed a false, incomplete, and misleading criminal court complaint and forwarded it to prosecutors in the Bronx County District Attorney's Office.

73. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

74. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

77. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Babie Simpson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 29, 2019

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 29, 2019

/s/
DAVID M. HAZAN